

IN THE COURT OF COUNTY
(COURT AND COUNTY NAMED IN THE CAPTION - THE COURT WITH ORIGINAL
JURISDICTION OVER THE OFFENSES, IN THE COUNTY WHERE THE CLERK OF COURT THAT
HOLDS THE FILE IS LOCATED (STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL))
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

DEFENDANT'S MOTION TO SEAL CLERK OF COURT RECORDS
(O.C.G.A. Sec. 35-3-37(m))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this motion in the above-styled criminal case, in the existing case under the existing case number, under O.C.G.A. Sec. 35-3-37(m). The defendant states:

1. The record of the above-styled case has been restricted under O.C.G.A. Sec. 35-3-37. The defendant's Georgia criminal history report showing the case as restricted is attached as Exhibit B; it is the proof of this element.
2. The harm otherwise resulting to the privacy of the defendant clearly outweighs the public interest in the criminal history record information being publicly available.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from memory; the instructions page lists where each record lives):

Date of arrest in this case:

.....

How the case ended, worded as the court record words it:

.....

The route under which the record was restricted - automatically on a non-conviction, on a pre-2013 application, or by court order:

.....

Your own statement of how this court file being public has harmed you (state only what you know first-hand; nothing on these lines is written for you):

.....

.....

.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this motion; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order directing the Clerk of the court named in the caption to seal the criminal history record information in the clerk's custody, possession or control, including any index, and make it unavailable to the public, pursuant to O.C.G.A. Sec. 35-3-37(m), with disclosure limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit; and, in the alternative, that the motion be set for hearing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this motion personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-pathway:GA:ga-seal-m:restriction-and-sealing-of-a-pardoned-felony

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STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER SEALING THE CLERK OF COURT'S RECORDS OF THE CASE
(O.C.G.A. Sec. 35-3-37(m))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the Defendant's Motion to Seal Clerk of Court Records under O.C.G.A. Sec.
35-3-37(m).

The Court finds by a preponderance of the evidence that the record of this case has been restricted under
O.C.G.A. Sec. 35-3-37 and that the harm otherwise resulting to the privacy of the defendant clearly
outweighs the public interest in the information being publicly available.

IT IS ORDERED that the Clerk of the court named in the caption seal the criminal history record
information of this case in the clerk's custody, possession or control, including any index and any online
record, identified by the OTN and the date of arrest stated below, and make it unavailable to the public,
pursuant to O.C.G.A. Sec. 35-3-37(m). The clerk has 60 days after this order to restrict every document in
the clerk's custody, possession or control.

Disclosure of the sealed information remains limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit.

OTN of the case (needed for this order to be actionable by GCIC):

.....

Date of arrest identified in this order:

.....

SO ORDERED, this day of, 20.....

.....

JUDGE, COURT NAMED IN THE CAPTION

(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Defendant's Motion to Seal Clerk of Court Records and the accompanying proposed order on each person
listed below, by registered mail, certified mail or statutory overnight delivery (statutorily sufficient under
O.C.G.A. Sec. 35-3-37(m)(1)).

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and
signed when the copies actually go out. A date or a signature written before the copies go out would be
false.

Route: obligation:track-pathway:GA:ga-seal-m:restriction-and-sealing-of-a-pardoned-felony

EXHIBIT A - FINAL DISPOSITION

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Defendant's Motion to Seal Clerk of Court Records in this packet.

ATTACH BEHIND THIS PAGE: a copy of the final disposition of this case.

WHERE YOU GET IT: the clerk of the court that handled the case.

HOW: Ask the clerk for a copy of the final disposition and attach it behind this page.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-pathway:GA:ga-seal-m:restriction-and-sealing-of-a-pardoned-felony

EXHIBIT B - GEORGIA CRIMINAL HISTORY REPORT SHOWING THE CASE IS RESTRICTED

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Defendant's Motion to Seal Clerk of Court Records in this packet.

ATTACH BEHIND THIS PAGE: your own Georgia criminal history report showing this case as restricted
- it is the proof of the first statutory element.

WHERE YOU GET IT: most Georgia sheriff's offices and police departments, or GCIC.

HOW: Obtain the report and confirm the cycle shows as restricted before filing. If it does not, stop: a restriction route comes first, and this motion is premature.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-pathway:GA:ga-seal-m:restriction-and-sealing-of-a-pardoned-felony

EXHIBIT C - EXHIBITS SUPPORTING YOUR OWN PRIVACY-HARM ACCOUNT

ATTACH THESE ONLY WHERE YOU CHOOSE TO SUPPLY THEM.

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Defendant's Motion to Seal Clerk of Court Records in this packet.

ATTACH BEHIND THIS PAGE: exhibits supporting your own privacy-harm account.

WHERE YOU GET IT: your own records.

HOW: The packet formats what you supply and assesses none of it.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-pathway:GA:ga-seal-m:restriction-and-sealing-of-a-pardoned-felony